

Judiciary

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Supreme Court of India

Supreme Court of India is the highest judicial forum & final court of appeal. According to the Constitution of India, the role of the Supreme Court is that of a federal court & guardian of the Constitution.

Composition of Supreme Court

Under Article 124(1) the constitution originally provided for 1 Chief Justice of India & not more than 6 other judges. The constitution authorizes the Parliament to provide by law in fixing the Strength of the judges of the Supreme Court.

The Parliament passed the Supreme Court (Number of Judges), a Constitutional Amendment Act in 2008, it has increased the strength of Supreme Court to 31 (1 Chief Justice + 30 other judges).

Qualification to be a judge of Supreme Court

1. A person must be a citizen of India
2. He/she must have been, for at least five years, a Judge of a High Court or of two or more such Courts in succession
3. Or an Advocate of a High Court or of two or more such Courts in succession for at least ten years
4. Or the person must be, in the opinion of the President, a distinguished jurist.

Removal of judges of Supreme Court

Article 124(4) provides for the removal of a judge of the Supreme Court. He is removed by the President upon an address by both the Houses of the Parliament supported by a majority of not less than 2/3rd of members present & voting & a majority of total strength of the House on the ground of misbehavior or incapacity.

The President shall pass the order of removal in the same session in which the Parliament passed the resolution. Article 124(5) confers the power on the Parliament to provide by law for the procedure for the Presentation of an address & for the investigation for proof of misbehavior or incapacity of a judge. Accordingly the Parliament passed Judges (Inquiry) Act 1968 which states that a resolution seeking the removal of a judge of Supreme Court can be introduced in either House of Parliament.

It is the highest judicial forum & final court of appeal as established by Part V, Chapter IV of the Constitution of India. Articles 124 to 147 of the Constitution of India lay down the composition & jurisdiction of the Supreme Court of India. The Supreme Court has Original jurisdiction, Appellate jurisdiction & Advisory jurisdiction. The Supreme Court is the highest appellate court which takes up appeals against the verdicts of the High Courts & other courts of the states & territories.

The Supreme Court has the power to transfer the cases from one High Court to another & even from one District Court of a particular state to another District Court of the other state. The Supreme Court has the power of Constitutional review. The Supreme Court of India held its inaugural sitting on 28 January 1950

- ome Important Points on SC -
1. The first woman judge of the Supreme Court was Justice Fatima Bibi in 1987. However, there has been no female Chief Justice.
 2. Ad hoc Judges:
 - (a) Ad hoc Judges are non-Supreme Court judges who sit in the Supreme Court when there is insufficient quorum to perform the judicial duties.
 - (b) Ad hoc Judges are appointed by the Chief Justice after obtaining consent from the President.
 - (c) Serving(HC) & retired (SC & HC) judges of the Supreme Court (and High Courts) can sit & act as ad hoc Judges of the Supreme Court.
 - (d) Only such persons can be appointed as ad hoc Judges who are qualified to be appointed as a regular Judge of the Supreme Court
 3. The Chief Justice administers the oath in front of the President.
 4. The first Chief Justice of India was H J Kania (1950 - 1951).
 5. The shortest tenure was for K N Singh (Nov 1991 - Dec 1991, UP)
 6. The longest tenure was for Y V Chandrachud (1978 - 1985, Bombay)

JURISDICTION OF THE SUPREME COURT

(a) Original Jurisdiction:

1. Original Jurisdiction means that certain types of cases can originate with the Supreme Court only.

2. The Supreme Court has original jurisdiction in :
 - (a) Disputes between the Centre & one or more states.
 - (b) Disputes between the Centre & any state(s) on one side & one or more states on the other side.
 - (c) Disputes between two or more states.
 - (d) Disputes regarding the enforcement of Fundamental Rights.

(b) Appellate Jurisdiction:

Appellate Jurisdiction means that appeals against judgements of lower courts can be referred to SC as the Supreme Court is the highest court of appeal in the country.

(c) Advisory Jurisdiction:

1. Advisory Jurisdiction refers to the process where the President seeks the Court's advice on legal matters.
2. If the President asks for advice from the Supreme Court, the Court is duty-bound to give it. However, it is not binding on the President to accept the advice.

HIGH COURT

1. The High Court is at the apex of the judicial administration of the state.
2. Art 214 of the Constitution provides that there shall be a High Court for each state of the Indian union. But the Indian Parliament is empowered to establish a common High Court for two or more states & to extend the jurisdiction of a High Court to a union territory. Similarly, Parliament can also reduce the area of jurisdiction of a High Court.
3. The High Court consists of a Chief Justice & some other Judges. The number of judges is to be determined by the President of India from time to time.
4. The Chief Justice of a High Court is appointed by the President in consultation with the Chief Justice of the Supreme Court & the Governor of the state concerned. The procedure for appointing other judges is the same except that the Chief Justice of the High Court concerned is also consulted. HC JUDGE hold office until they attain the age of 62 years & are removed from office in the same manner as a judge of the Supreme Court.

Qualification

A person shall be qualified for appointment as a judge of the High Court if

- (a) he is a citizen of India,
- (b) has for at least ten years held a judicial office in the territory of India, or

- (c) has for at least ten years been an advocate of a High Court, or of two or more such courts in succession.

Every judge of the High Court before entering upon his office shall make & subscribe before the Governor of the state, an oath of affirmation in the form prescribed by the Constitution.

Removal of judges

A judge of the High Court shall hold office until he attains the age of 62 years. A judge may resign from his office by writing under his hand to the president of India. He can also be removed by the President of India on the ground of proved misbehavior or inefficiency if a resolution to that effect is passed by both the Houses of Parliament by a two-thirds majority of the total members present & voting, supported by a majority of the total membership of each house.

Jurisdiction of a HC:

The High Court has Original jurisdiction in such matters as writs & Appellate jurisdiction over all subordinate courts in their jurisdiction. Every High court has the power to issue to any person or authority including any Govt. within its jurisdiction, direction, or orders including writs which are in the nature of habeas corpus, mandamus prohibition, quo-warranto & certiorari or any of them for enforcement of fundamental rights conferred by part III of the constitution & for any other purpose.

- (1) Election petitions challenging the elections of Members of Parliament or member of State Legislative Assembly or other local bodies can be filed in the concerned High Court.
- (2) The High Courts have Appellate jurisdiction in both civil & criminal cases against the decisions of lower courts.

Under Revisory jurisdiction, the High Court is empowered to call for the records of any court to satisfy itself about the correctness of the legality of the orders passed. This power may be exercised on the petition of the interested party or it can suo moto call for the records & pass necessary orders.

All Courts excepting tribunals dealing with the Armed forces, are under the supervision of the High Court. Tribunals dealing with the Armed forces are not under the supervision of HC.

This power is enjoyed under Art 227 of the Constitution. Thus administration of the state's judiciary is the essential function of the High Court.